§ 140.12 *Publication; protests.* (a) The applicant will be required to publish once a week for four consecutive weeks in accordance with § 106.18 of this chapter, at his expense, in a designated newspaper and in a designated form, a notice allowing all persons claiming the land adversely to file in the land office for the district in which the land is situated, or if there is no land office for the district in which the land is situated, with the Director, Bureau of Land Management, Washington 25, D. C., their objections to the issuance of patent under the application. A protestant must serve on the applicant a copy of the objections and furnish evidence of such service.

(b) The applicant must file a statement of the publisher, accompanied by a copy of the notice published, showing that publication has been had for the required time.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 15, 1954.

[F. R. Doc. 54-3017; Filed, Apr. 21, 1954; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 955]

NEW MEXICO

MODIFYING PUBLIC LAND ORDER NO. 142 OF JUNE 16, 1943

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Public Land Order No. 142 of June 16, 1943, reserving under the jurisdiction of the Department of the Interior certain public lands in New Mexico for use in connection with the prosecution of the war is hereby modified to the extent necessary to permit disposal of the following-described lands under applicable public land laws by a State exchange or State selection:

NEW MEXICO PRINCIPAL MERIDIAN

T. 18 S., R. 13 W.,
Sec. 12, lot 1.

The area described contains 31.71 acres.

DOUGLAS MCKAY,
Secretary of the Interior.

APRIL 15, 1954.

[F. R. Doc. 54-3016; Filed, Apr. 21, 1954; 8:45 a. m.]

[Public Land Order 956]

ALASKA

AMENDING PUBLIC LAND ORDER NO. 945 OF MARCH 18, 1954

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Public Land Order No. 945 of March 18, 1954 (19 F. R. 1583) revoking Executive Order No. 5214 of October 30, 1929 is hereby amended by adding at the end of the sixth paragraph the following sentence:

All applications filed pursuant to the veterans' preference act of 1944, on or before 10:00 a. m. of the 35th day (April 22, 1954) after the date of this order shall be treated as though simultaneously filed at that time; all other applications under the public land laws filed on or before 10:00 a. m. of the 126th day (July 22, 1954) after the date of this order shall be treated as though simultaneously filed at that time.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

APRIL 20, 1954.

[F. R. Doc. 54-3077; Filed, Apr. 21, 1954; 10:24 a. m.]

TITLE 50—WILDLIFE

Chapter III—International Regulatory Agencies (Fishing and Whaling)

Subchapter A—International Fisheries Commission

PART 301—PACIFIC HALIBUT FISHERIES

Part 301 of Chapter III, Title 50, is revised to read as follows:

Sec.
301.1 Regulatory areas.
301.2 Length of halibut fishing season.
301.3 Closed seasons.
301.4 Catch limits in Areas 2 and 3A.
301.5 Size limits.
301.6 Licensing of vessels.
301.7 Retention of halibut taken under permit.
301.8 Conditions limiting validity of permits.
301.9 Statistical return by vessels.
301.10 Statistical return by dealers.
301.11 Closed nursery grounds.
301.12 Dory gear prohibited.
301.13 Nets prohibited.
301.14 Retention of tagged halibut.
301.15 Responsibility of master.
301.16 Supervision of unloading and weighing.
301.17 Previous regulations superseded.

AUTHORITY: §§ 301.1 to 301.17 issued under Art. III, 50 Stat., Part 2, 1353.

§ 301.1 *Regulatory areas.* (a) Convention waters which include the territorial waters and the high seas off the western coasts of Canada and the United States of America including the southern as well as the western coasts of Alaska shall be divided into the following areas, all directions given being magnetic unless otherwise stated.

(b) Area 1A (South of Heceta Head) shall include all convention waters southeast of a line running northeast and southwest through Heceta Head Light, as shown on Chart 5802, published in July, 1947, by the United States Coast and Geodetic Survey, which light is approximately latitude 44°08'18" N., longitude 124°07'36" W.

(c) Area 1B (Heceta Head to Willapa Harbor) shall include all convention waters between Area 1A and a line running northeast and southwest through Willapa Bay Light on Cape Shoalwater, as shown on Chart 6185, published in July, 1939, by the United States Coast and Geodetic Survey, which light is approximately in latitude 46°43'17" N., longitude 124°04'15" W.

(d) Area 2 (Willapa Harbor to Cape Spencer) shall include all convention waters off the coasts of the United States of America and of Alaska and of Canada between Area 1B and a line running through the most westerly point of Glacier Bay, Alaska, to Cape Spencer Light as shown on Chart 8304, published in June, 1940, by the United States Coast and Geodetic Survey, which light is approximately latitude 58°11'57" N., longitude 136°38'18" W., thence south one-quarter east and is exclusive of the nursery areas closed to all halibut fishing in § 301.11.

(e) Area 3A (Cape Spencer to Sanak Islands) shall include all the convention waters off the coast of Alaska that are between Area 2 and a straight line running approximately south three-quarters east from the Alaska Peninsula, near Bold Cape approximately latitude 55° 01'15" N., longitude 162°15'45" W., through the highest point on Dear Island approximately latitude 54°57'45" N., longitude 162°16'45" W., and through the highest point on Caton Island approximately latitude 54°24'00" N., longitude 162°26'00" W. The points on the Alaska Peninsula, on Deer and Caton Islands shall be determined from Chart 8860 as published December, 1942, by the United States Coast and Geodetic Survey, Washington, D. C.

(f) Area 3B (West of Sanak Islands including Bering Sea) shall include all the convention waters off the coast of Alaska which are not included in Area 3A or in Area 2 or in the nursery area described in § 301.11 (b).

§ 301.2 *Length of halibut fishing seasons.* (a) In Area 1A, the halibut fishing season shall commence at 12:01 a. m. of the 16th day of May and terminate at 11:59 p. m. of the same day that the third halibut fishing season in Area 3B shall terminate.

(b) In Area 1B, the halibut fishing seasons shall commence and terminate at the same times as the halibut fishing seasons in Area 2 shall commence and terminate.

(c) In Area 2, there shall be two halibut fishing seasons: The first season commencing at 12:01 a. m. of the 16th day of May and terminating at 11:59 p. m. on a date to be determined and announced under § 301.4 (b); the second season, of 8 days, commencing at 12:01 a. m. of the 1st day of August and terminating at 11:59 p. m. of the 8th day of August, or if the termination of the first season in Area 2 or in Area 3A be later than 11:59 p. m. of the 22d day of July the second season in Area 2 shall commence at 12:01 a. m. of the tenth day after termination of the first season in Area 2 or in Area 3A whichever shall be later and terminate at 11:59 p. m. of the 8th day after commencement of the second fishing season in this area.

(d) In Area 3A, there shall be two halibut fishing seasons: The first commencing at 12:01 a. m. of the 16th day of May and terminating at 11:59 p. m. on a date to be determined and announced under § 301.4 (b); the second

season, of 10 days, commencing at 12:01 a. m. of the 1st day of August and terminating at 11:59 p. m. of the 10th day of August, or if the termination of the first season in Area 2 or in Area 3A be later than 11:59 p. m. of the 22d day of July the second season in Area 3A shall commence at 12:01 a. m. of the 10th day after termination of the first season in Area 2 or in Area 3A whichever shall be later and terminate at 11:59 p. m. of the 10th day after commencement of the second fishing season in this area.

(c) In Area 3B, there shall be three halibut fishing seasons; The first and the second fishing seasons commencing and terminating at the same times as the first and second fishing seasons respectively in Area 3A; the third season, of 25 days, commencing at 12:01 a. m. of the 5th day after the termination of the second fishing season and terminating at 11:59 p. m. of the 30th day after the termination of the second season provided the latter date is not later than 11:59 p. m. of the 30th day of November when all convention waters shall be closed to halibut fishing as provided in § 301.3 (b).

§ 301.3 *Closed seasons.* (a) Under paragraph 1 of Article 1 of the Convention, all convention waters shall be closed to halibut fishing except as provided in § 301.2.

(b) All convention waters, if not already closed under other provisions of this part, shall be closed to halibut fishing at 11:59 p. m. of the 30th day of November and shall remain closed until re-opened as provided in § 301.2, and the retention and landing of any halibut caught during this closed period shall be prohibited.

(c) Nothing contained in this part shall prohibit the fishing for species of fish other than halibut or prohibit the International Pacific Halibut Commission, hereafter in this part referred to as "the Commission," from conducting or authorizing fishing operations for investigation purposes as provided for in paragraph 3 of Article I of the Convention.

§ 301.4 *Catch limits in Areas 2 and 3A.* (a) The quantity of halibut to be taken during the first halibut fishing season in Area 2 and during the first halibut fishing season in Area 3A in 1954 shall be limited to 26,500,000 pounds and 28,000,000 pounds respectively of salable halibut, the weights in each limit to be computed as with heads off and entrails removed.

(b) The Commission shall as early in the said year as is practicable determine and announce the date on which it deems each limit of catch defined in paragraph (a) of this section will be attained, and the limit of each such catch shall then be that which shall be taken prior to said date, and fishing for halibut in the area or areas to which each limit applies shall at that date be prohibited until each area is re-opened to halibut fishing as provided in § 301.2, and provided that if it shall at any time become evident to the Commission that the limit will not be reached by such date, it may substitute another date.

(c) No catch limits shall apply to the second halibut fishing season in Area 2 or to the second halibut fishing season in Area 3A, or to any halibut fishing season in any other area.

§ 301.5 *Size limits.* The catch of halibut to be taken from all areas during the year 1954 shall be limited to halibut which with head on are 26 inches or more in length as measured from the tip of the lower jaw to the extreme end of the middle of the tail or to halibut which with the head off and entrails removed are 5 pounds or more in weight, and the possession of any halibut of less than the above length or the above weight, according to whether the head is on or off, by any vessel or by any master or operator of any vessel or by any person, firm or corporation, is prohibited.

§ 301.6 *Licensing of vessels.* (a) All vessels of any tonnage which shall fish for halibut in any manner or hold halibut in possession in any area, or which shall transport halibut otherwise than as a common carrier documented by the Government of the United States or of Canada for the carriage of freight, must be licensed by the Commission, provided that vessels of less than five net tons or vessels which do not use set lines need not be licensed unless they shall require a permit as provided in § 301.7.

(b) Each vessel licensed by the Commission shall carry on board at all times while at sea the halibut license thus secured whether it is validated for halibut fishing or endorsed with a permit as provided in § 301.8 and this license shall at all times be subject to inspection by authorized officers of the Governments of Canada or the United States or by representives of the Commission.

(c) The halibut license shall be issued without fee by the customs officers of the Governments of Canada or the United States or by representatives of the Commission or by fishery officers of the Governments of Canada or the United States at places where there are neither customs officers nor representatives of the Commission. A new license may be issued by the officer accepting statistical return at any time to vessels which have furnished proof of loss of the license form previously issued, or when there shall be no further space for record thereon, providing the receipt of statistical return shall be shown on the new form for any halibut or other species taken during or after the voyage upon which loss occurred.

(d) The halibut license of any vessel shall be validated before departure from port for each halibut fishing operation for which statistical return is required. This validation of a license shall be by customs officers or by fishery officers of the Governments of Canada or the United States when available at places where there are no customs officers and shall not be made unless the area in which the vessel will fish is entered on the license form and unless the provisions of § 301.9 have been complied with for all landings and all fishing operations since issue of the license, provided that if the master or operator of any vessel shall fail to comply with the provisions of § 301.9, the halibut license of such vessel may be validated by customs officers or by fishery officers upon evidence either that there has been a judicial determination of the offense or that the laws prescribing penalties therefor have been complied with, or that the said master or operator is no longer responsible for, nor sharing in, the operations of said vessel.

(e) The halibut license of any vessel fishing for halibut in Area 1A as defined in § 301.1 must be validated at a port or place within Area 1A prior to each such fishing operation when Areas 1B and 2 are closed to halibut fishing.

(f) The halibut license of any vessel fishing for halibut in Area 3B during the third halibut fishing season as defined in § 301.2 (e) must be validated at a port or place within Area 3B prior to such fishing and again before said vessel departs from Area 3B subsequent to such fishing if said vessel has any halibut on board.

(g) A halibut license shall not be validated for departure for halibut fishing in Areas 1A or 1B or 2 more than 48 hours prior to the commencement of any halibut fishing season in said areas; nor for departure for halibut fishing in Areas 3A or 3B from any port or place inside said areas more than 48 hours prior to the commencement of any halibut fishing season in said areas; nor for departure for halibut fishing in Areas 3A or 3B from any port or place outside said areas more than 5 days prior to the commencement of any halibut fishing season in said areas.

(h) A halibut license shall not be valid for halibut fishing in more than one of Areas 1A, 1B or 3A, as defined in § 301.1, during any one trip nor shall it be revalidated for halibut fishing in another of said areas while the vessel has any halibut on board.

(i) A halibut license shall not be valid for halibut fishing in any area closed to halibut fishing nor for the possession of halibut in any area closed to halibut fishing except while in actual transit to or within a port of sale and as provided in paragraph (k) of this section.

(j) A halibut license shall not be valid for halibut fishing in any area while a permit endorsed thereon is in effect, nor shall it be validated while halibut taken under such permit is on board.

(k) A halibut license when validated for halibut fishing in Area 3A shall not be valid for the possession of any halibut in Area 2 if said vessel is in possession of baited gear more than 25 miles from Cape Spencer Light, Alaska; and a halibut license when validated for halibut fishing in Area 3B shall not be valid for the possession of any halibut in Area 3A, when Area 3A is closed to halibut fishing, if said vessel is in possession of baited gear more than 20 miles by navigable water route from the eastern boundary of Area 3B.

(l) No person on any vessel which is required to have a halibut license under paragraph (a) of this section shall fish for halibut or have halibut in his possession, unless said vessel has a valid license issued and in force in conformity with the provisions of this section.